

LAKE CHILWA AND MPOTO LAGOON FISHERIES MANAGEMENT PLAN

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They were facilitated by the following staff of the Department of Fisheries: Mr. L. Chikoko, District Fisheries Officer, Machinga, Mr. F. Nindi, District Fisheries Officer, Zomba, Mr. E. Chisale, District Fisheries Officer, Zomba, Mr. P. Bato, Assistant Fisheries Officer, Zomba, Mr. S. Banda, District Fisheries Officer, Phalombe, Mr. K. Thengo, District Fisheries Officer, Phalombe, Mr. J. Kasuzweni, Assistant Fisheries Officer, Machinga, Mr. P. Chimdenga, Fisheries Assistant, Zomba, Mr. N.K. Massi, Fisheries Assistant, Zomba, and Mr. B.M. Kameko, Fisheries Assistant, Phalombe, together with staff of Compass II/USAID, Mr. Moses Mpezeni, PM&E Specialist, Dr. John G.M. Wilson, PFM Specialist, and Mr. John Dickinson, Decentralization Specialist.

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GLOSSARY

“Beach seine net” means fishing net partly or wholly operated from a beach or shore;

“Beach Village Committee” means a group of persons who are engaged in any aspect of the fishing industry associated with a fishing beach, including fishing, fish processing, fish marketing and fish trading;

“Chief” means a person holding or acting in the office of Chief under the Chiefs Act, 1967.

“Director” means the Director of Fisheries appointed pursuant to section 3 of the Fisheries Conservation and Management Act, 1997;

“District Commissioner” in relation to a Chief or Messenger means the District Commissioner of the District in which such Chief or Messenger holds office;

“Fisheries management authority” means any local community organization established for the purposes of promoting local participation in the conservation and management of fisheries in Malawi;

“Fishing license” includes a fishing permit issued under the Fisheries Conservation and Management Act, 1997;

“Gill net” means any static or drifting fishing net which is used to catch fish by enmeshing or entangling them;

“Group Village Headman” means a person appointed to be a Group Village Headman under section 9 of the Chiefs Act, and holding office as such;

“Nkacha net” means an open water seine net with a foot rope that is weighted to the bottom in operation;

“Village” means a collection of adjacent huts in which reside at least 30 male Malawians aged 18 years or over;

“Village Headman” means a person appointed to be a Village Headman under section 9 of the Chiefs Act.

1. INTRODUCTION

Lake Chilwa is situated on the eastern border of the southern region of Malawi. It yields up to 25,000 tons of fish a year and is one of the most productive freshwater bodies in Africa. This high productivity is derived from the high growth rate of the extensive Typha swamps (25 – 30 tons of biomass/ha/year over an area of 700 km. sq). The value of the fishery is estimated at an average of US\$11 million per annum, and in good fishing years, Lake Chilwa provides employment to almost 6,000 fishermen and at least an equal number of fish processors and fish traders.

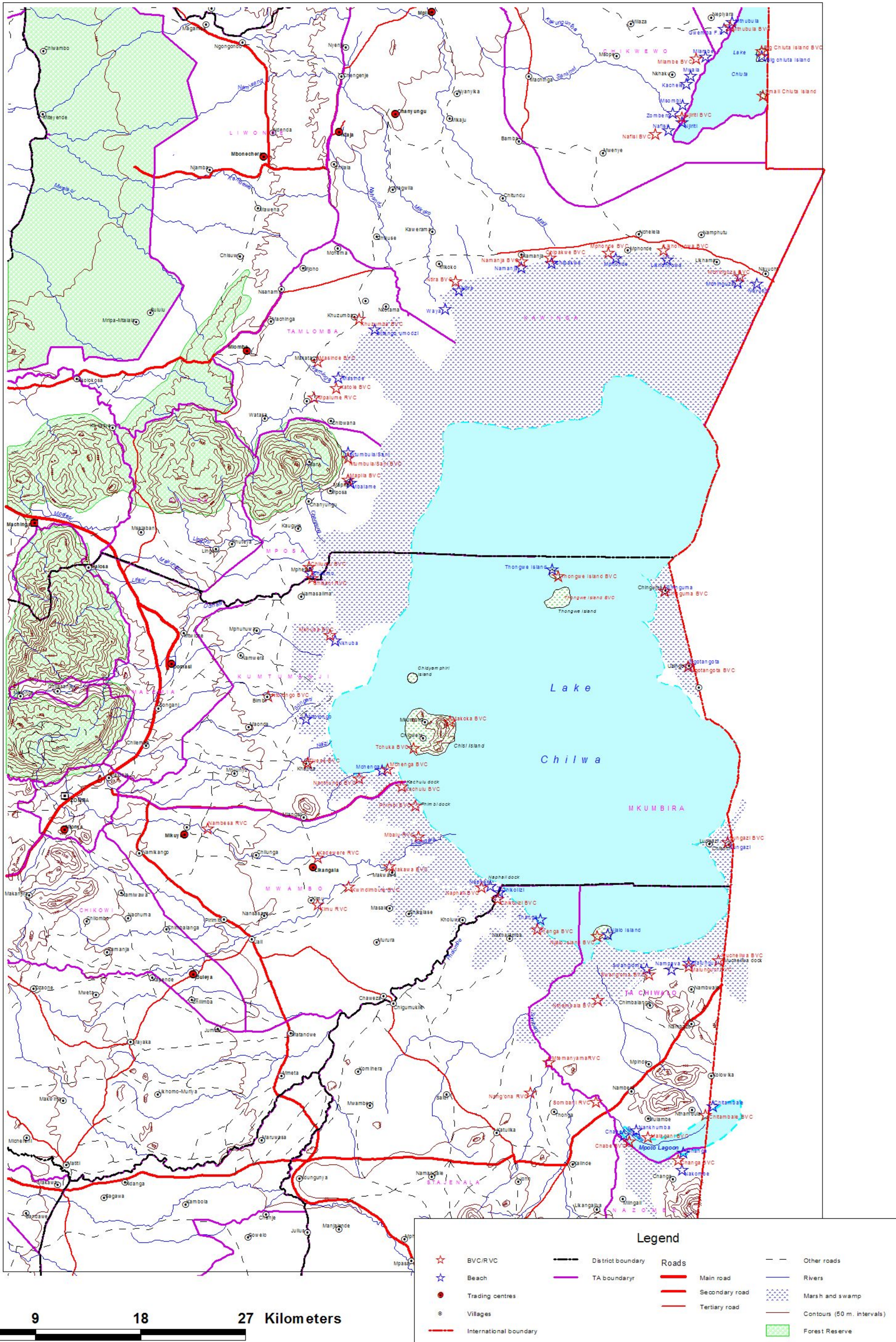
The area of Lake Chilwa is 2,310 km sq. of which approximately only 1/3 is open water, varying between 678 and 1054 km. sq., depending on whether the lake level is low or high. The height of the lake level also determines the extent of the floodplain (220 – 430 Km. sq.) and the marshland (163 – 300 km. sq.). The remaining third of the lake is taken up by Typha swamp (640 – 499 km sq). This very large Typha swamp, which is unique to Lake Chilwa, acts as a natural refuge and breeding sanctuary for fish, and in the opinion of the author, precludes the need for regulations for the fishery, apart from ensuring the maximum economic return from the chambo by harvesting only large high value fish.

The shallow nature of Lake Chilwa, which is no more than 5 meters deep, renders the lake prone to drying, and this has occurred seven times in the last century. At such times of recession Lake Chilwa's fish stocks, particularly the Chambo (*Oreochromis shiranus chilvae*), survive in pools in the rivers flowing into the lake; these fish, on which the lake depends for restocking when the lake refills, are thus extremely vulnerable to being caught, or more particularly, poisoned.

This was the case in 1995, when Lake Chilwa dried, and this provided the incentive for the Fisheries Department to promote community participation in the protection of these vital resources. River Village Committees were set up in the villages along all the major in-flowing rivers, including the Domasi, Likangala, Phalombe and Sambani rivers, with the responsibility and mandate to protect the fish breeding stock in pools in the rivers by prohibiting the use of nets and especially the use of fish poison.

Subsequently, with the refilling of the lake and the restoration of the lake fishery, community fisheries management was extended to Lake Chilwa and Mpoto Lagoon, with the formation of over 50 Beach Village Committees and the creation of a Fisheries Association

Lakes Chilwa and Chiuta Fisheries



2. BACKGROUND INFORMATION

On Community Management of Fisheries on Lake Chilwa and Mpoto Lagoon

The development of community co-management of the fishery of Lake Chilwa and Mpoto Lagoon by the creation of Beach and River Village Committees and the Lake Chilwa and Mpoto Lagoon Fisheries Conservation and Management Association failed because fundamental guiding principles of CBNRM were not observed, in particular:

- a. Natural resources should be managed by the people who use them.
- b. At the local level, community-based natural resources management activities should be managed by democratically elected institutions or committees.
- c. The user group must be legally registered.

In the initial stage of this assignment it became clear that many of the Beach Village Committees were simply appointed by the traditional authorities, usually the Group Village Headmen and these committees included a number of members who had no connection with the fishing industry. These members thus had no real knowledge of the fishery, and more importantly, were not primary stakeholders in the fishery. Furthermore these Beach Village Committees had no membership, registered or otherwise, and no membership criteria.

Even more crucially, the Lake Chilwa and Mpoto Lagoon Fisheries Conservation and Management Associations was made up almost entirely of the Traditional Authorities of the Lake Chilwa area, none of whom are fishermen or involved in the fishing industry, and only one of whom actually lived on the lakeshore.

In the course of the development of the Management Plan for Lake Malombe by Dr Richard Bell and Mr. Steve Donda, it was very clearly established that the Traditional Authorities had no powers over the fishery, but this important lesson was ignored on Lake Chilwa.

With considerable financial assistance from COMPASS II/USAID Project, the Lake Chilwa and Mpoto Lagoon Fisheries Conservation and Management Association conducted two workshops for the formation of By-laws for the fishery. The lack of meaningful participation by the fishermen in the formation of these by-laws meant that most of these by-laws were technically and totally inappropriate or impractical. Furthermore, these by-laws were never “owned”, and thus not supported or adopted by the fishermen.

A review of the recommendations of the Lake Chilwa and Mpoto Lagoon Fisheries by-laws by Kenyatta Nyirenda in June 2001 pointed out that in order for the BVCs and the Lake Chilwa and Mpoto Lagoon Fisheries Association to impose by-laws they must acquire formal legal status by registration with the Registrar-General.

On 18th February, 2000 the Minister of Natural Resources and Environmental Affairs signed in law the Fisheries Conservation and Management (Local Community Participation) Rules, 2000 of the Fisheries Conservation and Management Act, 1997. This legislation provided a greatly enhanced enabling environment and guidance for the promotion of participatory fisheries management in Malawi. In October, 2001 the Ministry of Natural Resources and Environmental Affairs published the National Fisheries and Aquaculture Policy, and there was further encouragement to making a case for renewal of the effort to promote PFM.

The whole process was re-initiated, the rightful people elected by secret ballot to be in the Association Committee / BVC Sub-Committee, and the development of the rules and regulations. This Plan documents some of these consultative and participatory processes.

3. PARTICIPATORY FISHERIES MANAGEMENT PLAN FOR LAKE CHILWA AND MPOTO LAGOON: LOGICAL FRAMEWORK

The purpose of this management plan is to provide technical and operational guidelines to the Fisheries Associations and all other stakeholders linked to the fisheries sector for the conservation and management of the Lake Chilwa and Mpoto Lagoon fisheries.

3.1. VISION

The livelihoods of the fishing community of Lake Chilwa and Mpoto enhanced, and the supply of fish to the nation sustained.

3.2. THE OVERALL OBJECTIVE

The overall objective is to maximize the sustainable and economic yield of fish from the waters of Lake Chilwa and Mpoto Lagoon, and the rivers, through wise use and effective conservation and management

3.3. LOGICAL FRAMEWORK

OVERALL OBJECTIVE	OVI	MEANS OF VERIFICATION	RISKS AND ASSUMPTIONS
To maximize the sustainable yield of fish from the waters of Lake Chilwa and Mpoto Lagoon			
PURPOSE			
To enhance the livelihoods of the fishing communities around Lake Chilwa and Mpoto Lagoon.			
RESULT 1:	LIVELIHOODS OF LOCAL FISHING COMMUNITIES OF LAKE CHILWA AND MPOTO LAGOON ENHANCED.		
	Fishing communities have plenty of food, dress well, build houses with burnt bricks and corrugated iron roofs, buy more bicycles, and send their children to private schools.	Minutes of Fisheries Association Annual General Meeting. Fisheries Department socio-economic survey reports.	
Activity 1.1 Makumba (<i>Oreochromis shiranus chilwae</i>) and Chilunguni (<i>Tilapia rendalli</i>) harvested at their optimum economic value.	Fishermen retaining only Makumba and Chilunguni of 105 mm or above sold on market or Recommended gill nets of less than 70mm (2.75 in.) prosecuted.	Annual BVC / Association profile questionnaire enforcement report. Participatory catch monitoring records.	BVCs / Fisheries Associations empowered to enforce the Fisheries Regulations, 2001 of the Fisheries Act, 1997.

OVERALL OBJECTIVE	OVI	MEANS OF VERIFICATION	RISKS AND ASSUMPTIONS
Activity 1.2 Juvenile Makumba and Chilunguni protected	Table size Makumba and Chilunguni caught or sold on market Or, No Seine net fishing During closed season.	Annual BVC / Association profile questionnaire/enforcement report.	BVCs / Fisheries Associations empowered to enforce the Fisheries Regulations, 2001 of the Fisheries Act, 1997.
Activity 1.3 Reproduction of Matamba in rivers not impeded by weirs.	Weirs in rivers conform to the fisheries regulations	Annual BVC / Association profile questionnaire/enforcement report.	BVCs / Fisheries Associations empowered to enforce the Fisheries Regulations, 2001 of the Fisheries Act, 1997.
RESULT 2	LOCAL FISHERIES MANAGEMENT AUTHORITY EMPOWERED.		
Activity 2.1 Lake Chilwa and Mpoto Lagoon Fisheries Management Plan finalised	Lake Chilwa and Mpoto Lagoon Fisheries Management Plan agreed and adopted by the Director of Fisheries	Lake Chilwa and Mpoto Lagoon Fisheries Management Plan.	
Activity 2.2 Lake Chilwa and Mpoto Lagoon Fisheries Management Agreement signed.	Fisheries Management Plan for Lake Chilwa and Mpoto Lagoon signed by all parties.	Signed Fisheries Management Agreement.	Department of Justice delays reviewing the draft Fisheries Management Agreement.
RESULT 3	LOCAL FISHERIES MANAGEMENT AUTHORITIES INSTITUTIONALLY FUNCTIONAL.		
Activity 3.1 BVC Sub-committees meet monthly	Number of meetings per annum	Minutes of monthly BVC Sub-committee meetings	Funds for committee members refreshments and sitting allowances not available.
Activity 3.2 BVCs raise funds for meeting from membership fees	Amount of funds contributed by members	BVC annual profile questionnaires	BVC members fail to pay annual BVC membership fees
Activity 3.3 Fisheries Association committee meets quarterly.	Number of meetings per annum	Minutes of Association committee meetings	Funds for refreshments and sitting allowances not available.
Activity 3.4 BVCs / RVCs contribute funds to their Association	Amount of money contributed by BVCs / RVCs or Association members to their Fisheries Association.	Annual Fisheries Association Profile questionnaire.	BVCs / RVCs fail to remit funds to their Fisheries Association or Association members fail to pay Association membership fees
Activity 3.5 The Fisheries Association represents the interests of the fishing community (at ADC & Fisheries Department meetings.)	Fisheries Association Chairman (and Secretary) attendance at local Area Development Committee meetings	Annual Fisheries Association profile questionnaire.	The Traditional Authority fails to call meetings of the Area Development Committee. Association Chairman fails to attend ADC or F.D.

OVERALL OBJECTIVE	OVI	MEANS OF VERIFICATION	RISKS AND ASSUMPTIONS
	and meetings with Department of Fisheries officials.		meetings. Department of Fisheries officials fail to meet with the representatives of the Fisheries Association(s).
Activity 3.6 The Fisheries Association briefs the BVCs / RVCs on the outcome of the meetings of the Area Development Committee or with Fisheries Department officials.	Fisheries Association reports on BVCs / RVCs briefed	Annual Fisheries Association profile questionnaire	The office bearers of the Fisheries Association, and in particular, the Chairman, neglect to brief the BVCs / RVCs in their area on the outcome of ADC and Fisheries Department meetings.
Activity 3.7 The Fisheries Association supervises the BVCs / RVCs in its area and resolves any problems.	Fisheries Association reports on supervision of BVCs.	Annual Fisheries Association Profile questionnaire.	The office bearers of the Fisheries Association, and in particular, the Chairman, neglect to carry out supervisory visits to the BVCs / RVCs in his area.
Activity 3.8 The Fisheries Association holds Annual General Meetings.	Annual General Meeting takes place.	Minutes of Annual General Meeting.	The Chairman of the Fisheries Association fails to convene the Association AGM.
Activity 3.9 Elections of Fisheries Association / BVC / RVC office bearers by secret ballot conducted every three years, according to the Constitutions.	Office bearers for the Associations / BVCs / RVCs re-elected every three years.	Annual Fisheries Association and BVC / RVC Profile questionnaires.	Current committee members, especially the Chairmen, reluctant to leave office and therefore delay holding elections.
RESULT 4	AWARENESS OF THE IMPORTANCE OF FISHERY CONSERVATION AND MANAGEMENT RAISED.		
Activity 4.1 Associations / BVCs / RVCs conduct meetings of their members to discuss the conservation and management of the fishery and advise them on the regulations.	Evaluation of awareness of PFM and the fisheries regulations by Fisheries Department field extension staff.	Minutes of monthly BVC / RVC Sub-committee meetings.	Office bearers of Fisheries Associations / BVCs / RVCs, especially the Chairmen, fail to convene meetings of their members.
Activity 4.2 Office bearers of the Fisheries Association and BVCs / RVCs, especially the Chairmen, raise public awareness of PFM with chiefs and the public at large at public meetings.	Evaluation of public awareness by Fisheries Department field extension staff.	Annual BVC / RVC and Association profile questionnaires.	Chairmen of Fisheries Associations / BVCs / RVCs not active, and either fail to attend public meetings, or fail to speak on the issues relating to PFM at public meetings.
RESULT 5	LOCAL FISHERIES MANAGEMENT AUTHORITIES EFFECTIVELY ENFORCE FISHERIES REGULATIONS.		
Activity 5.1 BVCs / RVCs carry out	Number of enforcement patrols	Reports of patrols recorded in the minutes of the monthly	Sufficient funds not available to mount patrols.

OVERALL OBJECTIVE	OVI	MEANS OF VERIFICATION	RISKS AND ASSUMPTIONS
enforcement patrols on the lake and in the rivers.	carried out by the BVCs / RVCs.	BVC / RVC Sub-committee meetings.	BVC / RVC Sub-committee members compromised by the fishermen who are fishing illegally.
Activity 5.2 Funds for enforcement patrols available to BVCs / RVCs	Amount of funds raised by BVCs to pay for police allowances, fuel for patrol boat engine, etc.	Annual BVC profile questionnaire.	BVC / RVC members do not pay annual BVC membership fees. Fishermen do not pay BVC license fees. Fines imposed by the chief for offences against the Fisheries regulations not remitted to the BVC. Funds not made available to the BVCs / RVCs by the Department of Fisheries for enforcement.
Activity 5.3 Chiefs prosecute offences against the Fisheries regulations.	Number of offences prosecuted, amount of fines imposed, number of illegal fishing gears confiscated / destroyed.	Annual Fisheries Association profile questionnaire.	Chiefs are compromised by the fishermen who are breaking the fisheries regulations.
RESULT 6	OVER-FISHING PRESSURE CONTROLLED.		
Activity 6.1 BVCs / RVCs issue licenses to fish in their area of jurisdiction.	Number of licenses issued by BVCs / RVCs.	Annual BVC / RVC profile questionnaire.	Fisheries Associations fail to order and supply of BVC fishing license books to the BVCs / RVCs.
Activity 6.2 Fishermen fishing without a BVC /RVC license expelled from the fishery.	Number of fishermen expelled.	BVC annual enforcement report in the Annual BVC questionnaire.	BVCs fail to enforce the rule that no person shall fish in fishing waters falling within the jurisdiction of a BVC unless he is authorized to do so by a license or written authority of a BVC.
Activity 6.3 The Department of Fisheries controls access to the fishery by limiting the number of fishing licences available.	Number of licences issued by the Department of Fisheries	District Fisheries Officer's annual report	The Fisheries Department fails to issue fishing licences or fails to establish a limit to the fishing effort which the fishery can sustain.
RESULT 7	EFFECTIVENESS OF LOCAL FISHERY MANAGEMENT AUTHORITIES ENHANCED.		
Activity 7.1 Associations / BVCs / RVCs undertake exchange visits to other local NRM authorities	Associations / BVCs / RVCs gain knowledge and experience from other local NRM authorities	Annual report by Chairman at AGM	Funds for transport and accommodation for exchange visit(s) insufficient.

OVERALL OBJECTIVE	OVI	MEANS OF VERIFICATION	RISKS AND ASSUMPTIONS
Activity 7.2 Fisheries Department field extension staff train BVCs, RVCs and Fisheries Associations to conduct formalized meetings (agenda, procedure, and record keeping) on all aspects of fisheries management.	Associations / BVCs / RVCs trained to conduct formalized meetings.	Fisheries extension field staff monthly / quarterly / annual reports.	Funding for field extension staff activities, including transport, insufficient.

3.4. TIME FRAME

This Participatory Fisheries Management Plan commences on the signing of the Fisheries Management Agreement, 2009 for a period of five years. During this period, the plan contents will be reviewed every year in the light of adaptive management practices to ensure that it remains valid, meeting the needs of the community.

3.5. ANNUAL PLAN OF OPERATION FOR LAKE CHILWA FISHERIES ASSOCIATIONS AND BEACH/RIVER VILLAGE COMMITTEES

BVC ACTIVITY	ASSOCIATION ACTIVITY	J	F	M	A	M	J	J	A	S	O	N	D
Issue BVC fishing permits for gillnets, hooks, fish traps													
Issue BVC fishing permits for seine nets													
Close season for seine nets													
Enforcement patrols for close season for seine nets													
Enforcement patrols for regulations for gill nets													
BVC Sub-committee meetings-monthly													
	Association committee meetings-quarterly												
	Annual General Meeting												
	Area development Committee meetings (Association Chair)												
	Meetings with the Department of Fisheries (Association Chair and Secretary)												
	Fisheries Association Chair briefs BVCs /												

	RVCs on the outcome of meetings with the ADC and Fisheries Department and resolves any problems.												
Evaluation of the status of the fishery and the effectiveness of the regulations by BVC members using the planning matrix, facilitated by the Fisheries field staff.													
Evaluation of PFM by Fisheries field staff in collaboration with BVC/RVC/ Association Secretaries using the BVC/RVC & Association profile questionnaires.													

3.6. ANNUAL BUDGET FOR THE PARTICIPATORY CONSERVATION AND MANAGEMENT OF LAKE CHILWA AND MPOTO LAGOON

This budget is based on the reported expenditures of all the BVCs / RVCs and 6 Fisheries Associations on Lake Chilwa in 2008, when the total reported income was MK2,092,500 (derived from MK24,500 BVC / RVC membership fees, MK792,450 BVC Fishing Permit fees, and MK1,275,550 from fines)

No.	ACTIVITY	ESTIMATED EXPENDITURE
1	BVC / RVC Sub-Committee monthly meetings	
1.1	Refreshments MK500/meeting for 49BVCs	294,000
1.2	Members sitting allowance MK50/head/meeting	294,000
	Sub-total	588,000
2	Fisheries Association quarterly meetings	
2.1	Refreshments MK500/meeting for 6 Associations	12,000
2.2	Members sitting allowance K50/head/meeting	12,000
	Sub-total	24,000
3	Annual General Meetings for 6 Associations	
3.1	Refreshments MK5,000/AGM	30,000
	Sub-total	30,000
4	Enforcement of Fisheries Regulations	
4.1	Fuel: 10litres @MK215/litre for 20 patrols for 3 districts	129,000
4.2	Maintenance and Repair of outboard motor MK50,000 p.a. For 3 districts	150,000
4.3	Allowances for 2 Policemen / patrol @ MK2,000 per head	480,000
4.4	Hire of pick-up to transport confiscated nets to the District Fisheries office at MK5,000 per trip for 5 trips / district	75,000
4.5	Tribute to Chiefs for adjudicating cases MK2,000/case	100,000
	Sub-total	844,000
5	Annual BVC/RVC monitoring and evaluation meetings	
5.1	Refreshments MK50/ head for 20 members in 49BVCs/ RVCs	49,000
5.2	Stationery (Flip charts/marker pens/papers) MK2,500 / Association	15,000
	Sub-total	64,000
6	Exchange visit study tours to other Associations / BVCs	
6.1	Transport (MK3,000 per trip for 2 trips per association p.a.)	36,000
6.2	Accommodation and meals (MK5,000 per trip for 2 trips per association p.a.)	60,000
	Sub-total	96,000
	TOTAL	1,646,000

4. INCOME

4.1. BVC ANNUAL MEMBERSHIP FEE

Each BVC/RVC member is expected to pay an annual membership fee to their BVC / RVC. The amount of the fee is determined by the BVC / RVC itself. As a guide, for example, members of the Lake Chiuta Fisheries Association pay a membership fee of MK50 twice a year -- in January and July.

4.2. ANNUAL FISHING LICENSE

Each BVC / RVC is expected to issue an annual fishing licence to fish in the waters under their jurisdiction, and a fee may be charged (Seine net MK1,000, Gill net / Long-line / MK350, Fish traps MK150).

4.3. GOVERNMENT FUNDING

Funding of the enforcement activities of the Lake Chilwa and Mpoto Lagoon BVCs/RVCs and Associations, is channeled through the District Fisheries Office. This could include the provision of a patrol boat.

5. IMPLEMENTATION ARRANGEMENT

5.1. LEGAL FRAMEWORK

According to the powers conferred on the Beach Village Committees by the Fisheries Conservation and Management (Local Community Participation) Rules, 2000 of the Fisheries Conservation and Management Act, 1997, the BVCs will:

1. *Issue BVC Annual Fishing Licenses to those fishermen that are approved by the BVC to permit them to fish within the jurisdiction of the BVC. Thus the BVC has the power to control access to their fishery, which is crucial to the success of fisheries management. Furthermore, the Annual License fees charged by the BVC provide the BVC with operating expenses.*
2. *enforce fishing regulations pertaining to –*
 - (i) fish species;*
 - (ii) fish size;*
 - (iii) close season;*
 - (iv) fish sanctuaries (closed areas);*
 - (v) gear size and type, and;*
 - (vi) methods of fishing.*
3. *enforce conditions specified in licenses; and*
4. *seize fishing vessels and fishing gears which are reasonably believed to have been used in contravention of the Fisheries Conservation and Management Act: Provided that the seized item shall be surrendered to a fisheries protection officer within 48 hours after the seizure.*

5.2. ROLES OF STAKEHOLDERS

5.2.a. THE ROLE OF THE DEPARTMENT OF FISHERIES WITH RESPECT TO THE IMPLEMENTATION OF THE PLAN.

The role of the Department of Fisheries with respect to Participatory Fisheries Management is guided by the National Fisheries and Aquaculture Policy (October, 2001), which aims at maximising the sustainable yield from the national waters and man-made bodies of Malawi, as follows:

The guiding principle for fisheries extension is that while in the past major emphasis was placed on the use of enforcement to police fisheries regulation, the low effectiveness and high cost of this strategy in fisheries management has created the need for an extension approach which fosters greater community participation in fisheries management. The need to strengthen the extension service in order to implement an effective participatory management of the fisheries has been recognised.

The objective of extension is to mobilise the communities to participate and play an active role in fisheries management and fish farming (aquaculture) by facilitating the formation of fisheries management institutions e.g. Beach Village Committees (BVCs) and training them to conduct formalised meetings (agenda, procedure, and record keeping for the User Group Committee as well as for the Department of Fisheries) on all aspects of fisheries management.

The objective of fisheries research is to provide reliable information on the status of exploited fish stocks, economic and environmental parameters including noxious aquatic weeds in all water bodies by conducting monitoring programs for the various important fisheries in both deep and shallow waters, which also involve fishing communities in data collection and research programs relevant to fisheries

management (fishery and environmental monitoring), and then distributing quantitative information on the status of the fisheries resources to local communities and other stakeholders,

The guiding principle of participatory fisheries management is that it has proved to be the most appropriate method to manage the fish resources in the lakes of Malawi.

The participatory fisheries management goal is to establish and sustain the co-management of fisheries resources between the Department of Fisheries and key stakeholders (e.g. fishing communities, traditional leaders) in order to achieve sustainable exploitation of aquatic resources management for the artisanal fisheries.

In order to to achieve the active participation of local fishing communities in the management of the fish resources the Department of Fisheries will promote the formation of local fisheries management authorities (e.g. BVCs) and higher level entities, strengthen their capacity to enable them to participate effectively in fish resource management, and elaborate together with them appropriate fisheries management plans (objectives, measures and regulations in line with the Fisheries Act).

To provide legal instruments and procedures for the participation of local fisheries management authorities in the management of the fish resources, the department of Fisheries will conclude agreements for fisheries management plans between the Department of Fisheries and local fisheries management authorities and support local fisheries management authorities to participate in enforcement, research and monitoring activities.

The Fisheries Department will also develop and maintain the capacity to monitor, support and conduct research on participatory fisheries management within the Department of Fisheries, including monitoring enforcement activities of Government and local fisheries management authorities.

5.2.b. THE ROLE OF THE BEACH/RIVER VILLAGE COMMITTEE (BVC/RVC)

1.1 The Beach / River Village Committee is responsible for management of the fishery, particularly within the area of jurisdiction of the Beach / River Village Committee. A Beach / River Village Committee shall have power to:

- a. Scrutinize applications in respect of registration of fishing vessels of small- scale fishermen and subsistence fishermen.
- b. Scrutinize applications for fishing licenses by small-scale commercial fishermen and subsistence fishermen.
- c. Keep records of vessels registered and licenses issued in respect of its area of jurisdiction.
- d. Enforce fishing regulations pertaining to-
 - i. Fish species;
 - ii. Fish size;
 - iii. Close season;
 - iv. Fish sanctuaries (closed areas);
 - v. Gear size, type and storage thereof and
 - vi. Method of fishing.
- e. Enforce conditions specified in licenses;
- f. Seize fishing vessels and fishing gears which are reasonably believed to have been used in contravention of the Act, provided that the seized item shall be surrendered to a fisheries protection officer within 48 hours after the seizure;
- g. Monitor status of fish stocks;
- h. Undertake environmental conservation and management.

- 1.2 The Beach / River Village Committee is responsible for the issue of written authority to fish i.e. fishing licences, without which no person shall fish in fishing waters falling within the jurisdiction of a BVC / RVC.
- 1.3 The Beach / River Village Committee provides a forum for dialogue and debate within the fishing community, for identification of problems, formulation of solutions, organizing implementation of solutions, evaluation progress and adjusting solutions.
- 1.4 The Beach / River Village Committee acts as a two-way channel of communication between the fishing community and the Fisheries Department and other government and traditional authorities, which may also be through the Area Fisheries Association and Association Committee. This includes acting as a channel for extension messages to those engaged in the fishing industry, and feedback to the Fisheries Department.
- 1.5 The Beach / River Village Committee is responsible for registering all fishermen within the Beach Village Committee's area, and issuing letters of transfer to their members wishing to fish in a different area.
- 1.6 The Beach / River Village Committee is responsible for collection and accounting for fishing license fees and levies. Fines are collected by the chiefs and accounted for by the BVC / RVC.
- 1.7 The Beach / River Village Committee is committed to collaborating with the Fisheries Department in the collection of data on the fishery including maintaining a register of fishermen, licenses, and gear, for the monitoring and better management of the fishery.
- 1.8 The Beach / River Village Committee is required to keep the Fisheries Association informed of any events of importance to the fishery which occur in their area.
- 1.9 The Beach / River Village Committee shall collaborate with other community groups in the area of the Beach / River Village Committee, especially the Village Development Committee.

5.2.c. THE ROLE OF THE FISHERIES ASSOCIATION

- 2.1 The principal role of the Association Committee is to manage the fishery for the long-term benefit of the members. This role implies that management of the fishery should be sustainable. Sustainability in turn implies:
 - Practices that are self-sustaining economically, socially, and in terms of management capacity
 - Practices that allow renewal of fish resources
- 2.2 The Association Committee Members are required to make plans for the management of the fishery, which will generate optimum benefits for the members while ensuring that fishery management is sustainable.
- 2.3 The Association Committee is required to submit work plans for the approval of the members of the Association as a whole.
- 2.4 The Association Committee is required to implement the Management Plan and report back to the members on progress.
- 2.5 The Association Committee is responsible for management of funds accruing to the account of the Association.
- 2.6 Association Committee Members may be held accountable in law if they fail to manage the assets of the Association in the best interest of the beneficiaries.

- 2.7 The Fisheries Association provides a forum for dialogue and debate and co-ordination between the Beach / River Village Committees within the area of the Fisheries Association.
- 2.8 The Fisheries Association Committee is responsible for presenting cases of infringement of the Associations regulations and By- laws to the competent authority, either the Chief or the Magistrate, for adjudication. Penalties are then imposed according to the regulations and By- laws, which may include fines or confiscation and destruction of illegal fishing gear.
- 2.9 The Fisheries Association Committee is responsible for ensuring that the Beach /River Village Committees are functioning correctly, and taking appropriate action in cases of irregularity.

5.2.d. THE ROLE OF THE TRADITIONAL AUTHORITY

In the capacity of Patron of the Fisheries Association the Traditional Authority shall support the Fisheries Association in the conservation and management of fish resources within his/her area of jurisdiction. In particular, the Traditional Authority shall preside over major breaches of the fishery regulations brought to the Traditional Court by the Fisheries Association. The Fisheries Association as a CBO is also a member of the Area Development Committee chaired by the Traditional Authority.

5.2.e. THE ROLE OF THE GROUP VILLAGE HEADMAN

In the capacity of Patron of the Beach / River Village Committee responsible for the conservation and management of the fish resources within the area of jurisdiction of the Group Village Headman, the Group Village Headman shall support the Beach / River Village Committee. In particular, the Group Village Headman shall adjudicate in minor breaches of the fishery regulations and cases of conflict brought to the Group Village Headman by the Beach / River Village Committee.

5.2.f. THE ROLE OF THE DISTRICT ASSEMBLIES (ZOMBA, MACHINGA, AND PHALOMBE)

The role of the District Assemblies in Participatory Fisheries Management as set out in the Local Government Act, 1998 and is as follows:|

- Taking charge of all decentralized services and activities which include but are not limited to- fisheries husbandry, extension services.
- Passing District fisheries by-laws.
- Supporting the Fisheries Associations with funds.
- Finance the Chiefs and provide them with transport.

5.3. OPERATIONAL APPROACH

5.3.a OPERATIONAL APPROACH

Periodic lake and lagoon patrols are carried out by designated members of the BVCs to check on illegal fishing gears and methods, as well as the use of non-licensed fishing gears.

5.3.b JOINT PATROLS AND OPERATIONS:

During closed seasons and times when there are violations of fishing regulations, joint patrols are conducted, in partnership, between the BVCs and the Department of Fisheries Enforcement Unit and the Malawi Police Service.

5.3.c REPRESENTING THE INTERESTS OF THE FISHING POPULATION

According to the Fisheries Conservation and Management (Local Community Participation) Rules, 2000 the duties of the fishermen's association shall include –

- (i) Representing the interests of the fishing population in its area.

Thus the association office bearers, and in particular the Chairman, should attend meetings of the Area Development Committee, which is under the chairmanship of the Traditional Authority, who is also the Patron of the fishermen's association. As the association representative, the Chairman briefs the A.D.C. on the activities of the fishermen's association and its BVCs within the area of the A.D.C.

The Rules also state -

22. A fishermen's association or a group of fishermen's associations may request meetings with the Fishery Advisory Board and the Director of Fisheries to discuss management plans, regulations or any other subsidiary legislation or amendments thereto.

5.3.d MONITORING AND EVALUATION FOR ADAPTIVE MANAGEMENT

The Beach Village Committees, assisted by the Fisheries Extension Assistants for their area should conduct meetings to evaluate the effectiveness of their fishery conservation and management through the matrix evaluation process, as shown in appendix 2, on an annual basis. The results from these exercises should then be reviewed by the fishermen's association together with the District Fisheries Officer, and the management of the fishery adapted accordingly.

5.3.e INSTITUTIONAL BUILDING

The Lake Chilwa and Mpoto Lagoon BVCs / RVCs and Associations will continue to undertake exchange visits with other local natural resource management authorities to share in their knowledge and experience and thus improve the effectiveness and appropriateness of management initiatives.

5.3.f PUBLIC AWARENESS

The office bearers, and in particular the Chairmen of the Fisheries Associations shall take whatever opportunities are available to raise public awareness of the conservation and management of the Lake Chilwa and Mpoto Lagoon fishery by the local fisheries management authorities.

APPENDIX 1: BVC FISHING LICENSE

AUTHORITY TO FISH WITHIN THE JURISDICTION OF A COMMITTEE
(CHILOLEZO CHA CHAKA NDI CHAKA CHOPERA NSOMBA PA BEACH / RIVER
VILLAGE KOMITI)

No.(Nambala) 0004501

Year (*Chaka*)

I (*Ine*),Chairman/ Secretary (*wapampando / mlembi*)

of (*wa*).....
(name of Committee) (*dzina la komiti*)

Hereby Certify that (*ndi ku chitula umboni*)

.....(name of fisherman) (*dzina la asodzi*)

of (*wa*)(home village) (*wochokera mudzi wa*).

is hereby authorised to fish in fishing waters falling within the jurisdiction of the above-named Committee (*wavomeredwa kupha nsomba mmadzi ozungulira dela lomwe lili pamwambali pogwiritsa ntchito zida izi*),

in the area of GVH (*pa malo ya GVH*),

TA.....

Amount paid (*Ndalama*) : K.....

Date (*Tsiku*).....

.....
Signature of Chairman / Secretary
(*Saini ya Wampando kapena mlembi*)

APPENDIX 2: IMPORTANCE OF FISH AND ITS CONSERVATION

NB: During participatory meetings with fishermen and district fisheries officers, fishermen were asked to rate the importance of different species of fish for home consumption and for sale, on a scale of 1 to 10, 10 being the most important. They were also asked to rank availability of these species on the same scale) This ranking effectively defines for which species the fishery will be managed.

While makumba, matemba and mlamba are all ranked highly for both sale and home consumption, they are common in the lake. However, Chilunguni (*Tilapia rendalli*), ranked high for sale, is scarce, hence management efforts should be aimed at conserving this species.

TYPE OF FISH	IMPORTANCE		AVAILABILITY	HOW IT IS DEPLETED IN THE LAKE	RULES AND REGULATIONS
	AS RELISH	FOR SALE			
Makumba <i>Oreochromis shiranus</i>	10	10	7	• Use of gauze wire surrounding the weeds in the waters • Cutting weeds in the lake • Use of seine nets in the months of Jan, Feb and March • Use of small meshed gill nets of 2" • Use of poison in rivers and pools.	• Gauze wire should be banned • Cutting of weeds where fish escape or hide should be stopped • Seine nets should not be used/fish during the months of Jan, Feb and march • Gill nets mesh sizes should not be below 2 ½" • Poison should not be applied in rivers
Kasawala <i>Oreochromis shiranus</i> juveniles	3	4	7	• Use of seine nets during the months of Jan, Feb and March. • Catching bigger fishes in the months of Nov. when the fingerlings are in their mouth • Use of small gaps of fish traps	• Seine nets should not be used during the months of Jan, Feb and March, it's the breeding time • Fish traps should have bigger gaps for small fish to pass through.
Matemba <i>Barbus paludinosus</i>	10	10	10	• Catching small fish • Catching fish by using gauze wire and mosquito nets	• Catching fish during breeding time should be stopped • Gauze wire and mosquito nets should be banned.
Usili	1	4	2	•	•
Nkhang'a	5	10	• Fish traps	• Fish traps should have bigger gaps	•

TYPE OF FISH	IMPORTANCE		AVAILABILITY	HOW IT IS DEPLETED IN THE LAKE	RULES AND REGULATIONS
	AS RELISH	FOR SALE			
Biggest <i>Clarius gariepinus</i>			- should not have small gaps - Use of gauze wire in the Matemba seine nets	Gauze wire should be banned completely	
Mlamba Big <i>Clarius gariepinus</i>	10	10	Cutting of weeds in the lake	Cutting of weeds in the lake should be banned	
Mbatambata Small (fingerlings) <i>Clarias gariepinus</i>	1	4	Cutting of weeds in the lake	Cutting of weeds in the lake should be banned	
Mtchetcheta	1	2	- Cutting of weeds in the lake - Use of small gaps in the fish traps	- Cutting of weeds in the lake should be banned - Fish trap should have bigger gaps for fish to go through	
Khalala	5	6	Catching fish using fish traps in rivers	Fishers should not use fish traps in rivers	
Makwale	10	10	Catching fish using fish traps in rivers	Fishers should not use fish traps in rivers	
Mphuta	4	3	- Use of gauze wire in the lake or rivers - Catching fish using fish traps in rivers	- Gauze wire should be banned - Fishes should not use fish traps in rivers	Fishers should use fish traps with bigger gaps

TYPE OF FISH	IMPORTANCE		AVAILABILITY	HOW IT IS DEPLETED IN THE LAKE	RULES AND REGULATIONS
	AS RELISH	FOR SALE			
Chilinguni <i>Tilapia rendalli</i>	4	10	3	• Use of gauze wire • Cutting of weeds • Catching fish in the months of Jan, Feb and March	• Gauze wire should be banned • Cutting of weeds in the lake should be banned • Fishers should not fish in the months of Jan, Feb., and March
Ningwi	2	6	1	• Catching fish using fish traps in rivers or brooks	• Fishers should not use fish traps in rivers or brooks
Nyumbu	2	4	1	• Catching fish using fish traps in rivers or brooks	• Fishers should not use fish traps in rivers or brooks

APPENDIX 3: BEACH/RIVER VILLAGE COMMITTEE PROFILE QUESTIONNAIRE

Beach / River Village Committee Profile Questionnaire

Date.....

Survey questionnaire on the Beach Village Committee / River Village Committee, to be compiled annually by the BVC / RVC Secretary, under the supervision of the Fisheries Assistant.

FISHERIES ASSOCIATION

1. **Name of BVC/RVC:** **Date formed**.....

Dzina la BVC/ RVC

2. **Location of BVC/RVC**

Malo

T.A.:..... **GVH:**

3. **Address of Beach / River Village Committee**

Adilesi ya BVC / RVC

4. **BVC / RVC Sub-Committee Membership (Mamembala a BVC / RVC komiti)**

OFFICE	NAME <i>Dzina</i>	FISHERMAN (<i>khoka(mwiniwa / antchito)/maukonde/ mbedza/mono</i>), FISH PROCESSOR/TRADER (<i>wageni</i>).
Patron		
1.Chairman		
2.Vice Chairman		
3.Secretary		
4.Vice Secretary		
5.Treasurer		
6.Member		
7.Member		
8.Member		
9.Member		
10.Member		

5. Total Membership of BVC RVC:

Umembala

a. Number of Registered Members:(total)(men).....(women)

Kuchuluka kwa mamembala olembedwa

- b. Number of fishermen (mwini wa khoka):
- c. Number of fishermen (antchito a ma khoka).....
- d. Number of fishermen (maukonde):.....Otchela maukonde?
- d. Number of fishermen (khuleya).....*Otchela khuleya?*
- e. Number of fishermen (mbedza):.....Otchela mbedza?
- f. Number of fishermen (mono):Otchela mono?
- g. Number of fish processors / traders (wageni):.....Ageni ya nsomba alipo ngati?
- h. Others (Specify)

6. Election of BVC / RVC Sub-committee Office Bearers:

Kusakha mamembala a BVC / RVC Komiti

- i. Date of election of Sub-committee Office Bearers:Tsiku lomwe kunachitika masakho omaliza
- j. Who presided over the election?

Anasogolere masankho ndani?

- k. How many members voted?Anthu ngati anaponya mavoti?

7. BVC Fishing Licences

Ndalama ya komito za chilolezo

Gear type <i>Chida chophera nsomba</i>	Unit price of licence <i>Mtengo wa cholotezo pa chida</i>	Total number of licences issued <i>Zilolezo zonse pamodzi</i>	Total revenue <i>Ndalama zonse pamodzi</i>
Open-water seine net - <i>Nkacha</i>	K		
Shore seine net – <i>Khoka la pansi</i>	K		
Gill net - <i>Machela</i>	K		
Long line - <i>Mbedza</i>	K		
Fish trap - <i>Mono</i>	K		
TOTAL			

Was any fisherman refused a BVC Fishing Licence?

If so, what was the reason?

8. BVC / RVC Income (Zopindula)

How much money has the BVC / RVC collected over the last year?

Kodi BVC / RVC yatolera ndalama zingati mu zaka zapitazo?

- (1) Membership fees.....

Ndalama za membala

- (2) BVC Fishing Permit fees.....

Ndalama za licensi

(3) Fines

Zochokela ku mafaindi

(4) Other (specify).....

Ngati pali zina longosolani

Total.....

9. How was the income from BVC Permits and fines used by the BVC ?

Ndalama zonse za zilolezo zinagwiritsidwa ntchito bwanje ?

.....

.....

.....

10. How much money was given to the Association?

Nanga a Association anapatsidwa ganjo lotani?

11. How much money was given to the V.H. / G.V.H. / T.A.?

Nanga mfumu yaikulu inapatsidwa zingati ?

12. How much was paid to the Police for support to the BVC when carrying out enforcement of the fisheries regulations?

Nanga asirikali/apolisi anapatsidwa zingati pogwira ntchitoyo?.....

RECORD OF ENFORCEMENT OF FISHERIES REGULATIONS
MOLEKODI OKHWIMITSA CHTETEDZO CHA MALAMULO KU MALO
OTETEDZEDWA

Name of Beach / River Village Committee

Dzina la kalabu ya asodzi

Case No. <i>Mulandu wachingati</i>	Case date <i>Tsiku la mulandu</i>	Name of offender <i>Dzina la olakwa</i>	Regulation infringed <i>Lamulo lophwanyidwa</i>	Origin of offender (V.H) <i>Kvao kwa olakwa V.H.</i>	Penalty imposed <i>Analandila chilango chotani?</i>	Who judged the case? <i>Anagamula mulandu ndani?</i>

APPENDIX 4: FISHERIES ASSOCIATION PROFILE QUESTIONNAIRE

Fisheries Association Profile Questionnaire

Date.....

Survey questionnaire on the Fisheries Association, to be compiled annually by the Fisheries Association Secretary, under the supervision of the Fisheries Assistant.

FISHERIES ASSOCIATION

1. Date formed.....

2. Location of Fisheries Association

Malo

T.A.:.....

3. Address of Fisheries Association

Adilesi ya Association

4. Association Committee Membership (*Mamembala a Association komiti*)

OFFICE	NAME <i>Dzina</i>	FISHERMAN (<i>khoka(mwiniwa / antchito)/maukonde/ mbedza/mono</i>), FISH PROCESSOR/TRADER (<i>wageni</i>).
Patron		
1.Chairman		
2.Vice Chairman		
3.Secretary		
4.Vice Secretary		
5.Treasurer		
6.Member		
7.Member		
8.Member		
9.Member		
10.Member		

5. Election of Association Committee Office Bearers:

Kusakha mamembala a Association Komiti

- l. **Date of election of Committee Office Bearers:**Tsiku lomwe
kunachitika masakho omaliza
- m. **Who presided over the election?**Anasogolere masankho ndani?
- n. **How many members voted?**Anthu ngati
anaponya mavoti?

6. Association Committee meetings. When did the Association Committee meet in the last year (dates)?.....

.....

7. Annual General Meeting:

Date of Annual General Meeting *Tsiku*

Location of Annual General Meeting.....*Malo*

Officials Present:

Traditional Authorities.....

Fisheries Department.....

Total number who attended.....

Main issues raised.....

.....

8. Representation of the fishing community:

At the Area Development Committee? Yes / No.....

At other District forums?

Fisheries Department meetings ? Dates / Agenda of these meetings?

.....

.....

.....

Briefing of BVCs / RVCs on these meetings (name of BVC / RVC, date)

.....

.....

9. Supervision of the BVCs / RVCs (give details of problems solved, security measures taken, dates, etc)

.....

.....

.....

10. How much money has the Association collected over the last year?

Kodi Asociation yatolera ndalama zingati mu zaka zapitazo?

- (1) Fines
Zochokela ku mafaindi.....
- (2) Contributions from BVCs / RVCs

.....
- (3) Sale of BVC Fishing Licence books.....
- (4) Other (specify)
Ngati pali zina longosolani.....
- Total.....

11. How was the income used by the Association ?

Ndalama zonse za zilolezo zinagwiritsidwa ntchito bwanje ?

.....

.....

.....

.....

12. How much money was given to the Traditional Authority?

.....

Nanga mfumu yaikulu inapatsidwa zingati ?

13. How much was paid to the Police for support to the Association when carrying out enforcement of the fisheries regulations?

Nanga afirikali anapatsidwa zingati pogwira ntchitoyo?.....

RECORD OF ENFORCEMENT OF FISHERIES REGULATIONS

MOLEKODI OKHWIMITSA CHTETEDZO CHA MALAMULO KU MALO OTETEDZEDWA

Name of Fisheries Association

Dzina la association ya asodzi

Case No. <i>Mulandu wachingati</i>	Case date <i>Tsiku la mulandu</i>	Name of offender <i>Dzina la olakwa</i>	Regulation infringed <i>Lamulo lophwanyidwa</i>	Origin of offender (V.H) <i>Kwao kwa olakwa V.H.</i>	Penalty imposed <i>Analandila chilango chotani?</i>	Who judged the case? <i>Anagamula mulandu ndani?</i>